

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1022

By: Luttrell

AS INTRODUCED

An Act relating to motor vehicles; amending 47 O.S. 2021, Section 11-403.1, which relates to failure to yield causing fatality or great bodily injury; requiring payment of fee for certain convictions; modifying fee; allowing discretion for fee payment for certain convictions; setting certain fee; directing deposit of funds; allowing court to impose certain additional penalties; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 11-403.1, is amended to read as follows:

Section 11-403.1. A. Any person convicted of failure to yield a right-of-way and who causes a fatality or ~~serious~~ great bodily injury, as defined in Section 11-904 of this title, as a result of such violation ~~may~~ shall, in addition to any other fine or penalty, be assessed a fee in ~~an~~ the amount ~~not exceeding One Thousand Dollars (\$1,000.00)~~ of Five Hundred Dollars (\$500.00) to be deposited in the Motorcycle Safety and Education Program Revolving Fund established in Section 40-123 of this title. Any person convicted of failure to yield a right-of-way and who causes a

1 serious bodily injury as a result of such violation may, in addition
2 to any other fine or penalty, be assessed a fee in the amount of
3 Five Hundred Dollars (\$500.00) to be deposited in the Motorcycle
4 Safety and Education Program Revolving Fund. For the purposes of
5 this section, a serious bodily injury is an injury that is serious
6 in nature but does not quite rise to the level of injury of great
7 bodily injury or a fatality.

8 The monies deposited as provided in this ~~section~~ subsection
9 shall be used to promote public awareness of the dangers of driving
10 while under the influence of alcohol or any controlled substance and
11 to promote motorcycle safety and defensive driving for youth.

12 B. In addition to the fee provided in subsection A of this
13 section, the court may impose additional penalties, including:

- 14 1. A remedial driving course;
15 2. A loss of driver license for ninety (90) days; or
16 3. A payment of restitution of no less than Three Thousand
17 Dollars (\$3,000.00), but no more than Ten Thousand Dollars
18 (\$10,000.00).

19 SECTION 2. This act shall become effective November 1, 2025.
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